At final approval, the Court will be seeking additional information sufficient to understand the scope of the claims at issue, as the Complaint was not specific enough for the Court to evaluate the merits.

C. **Attorney fees**

Plaintiff seeks 35% of the total settlement amount as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id*., at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Counsel are directed to prepare a lodestar fee estimate for the motion for final approval.

The reasonableness of litigation costs and the settlement administrator's fees will be considered at final approval.

Similarly, the requested representative payment of $10,000 for each plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

The Court notes that the proposed Class Notice contains reference to Department 39. That must be updated to Department 10 given the change in judicial officers presiding over this matter.

D. **Conclusion**

The Court finds that the agreement is sufficiently fair, reasonable, and adequate, to justify preliminary approval. The motion is granted.

Counsel are directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

7. 9:00 AM CASE NUMBER: C23-02732
CASE NAME: IVORYA GENEVE VS. MIKUNI RESTAURANT GROUP, INC
***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**
FILED BY:
TENTATIVE RULING:*

Plaintiff Ivorya Geneve moves for final approval of her class action and PAGA settlement with defendant Mikuni Restaurant Group, Inc. The Court granted preliminary approval on November 24, 2025.

A. Background and Settlement Terms

The original complaint was filed by Plaintiff on October 26, 2023, raising PAGA claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. Plaintiff filed a separate complaint alleging class action claims based on similar allegations, on February 16, 2024. Each complaint remains operative, and the settlement would settle each of them.

The settlement would create a gross settlement fund of $2,250,000.00. The class representative payment to plaintiff would be $10,000. Counsel's attorney's fees would be $787,500 (35% of the settlement). Litigation costs amount to $21,040.88. The settlement administrator (Apex) would be paid $24,490. PAGA penalties would be $200,000, resulting in a payment of $150,000 to the LWDA.[1] The fund is non-reversionary.

The proposed settlement would certify a class of all individuals who are current or former non-exempt employees of Defendant, in the State of California during the Class Period, February 16, 2020 through October 31, 2024. The parties have identified 3,050 Class members, who worked 209,449 Workweeks during the Class Period. The proposed settlement also resolves claims of the PAGA employees, defined as all individuals who are current or former non-exempt employees of Defendant in the State of California during the PAGA Period of August 18, 2022 through October 31, 2022. The parties have identified 1,885 individuals as aggrieved PAGA Employees, who worked 55,828 Pay Periods during the PAGA Period. The highest individual settlement share to a Class Member is estimated to be $1,412.95, the lowest $5.74, and the average $394.43. The highest individual settlement share to a PAGA Employee is estimated to be $51.95, the lowest $0.90, and the average $26.53.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Class members cannot opt out of the PAGA portion of the settlement.)

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Uncashed checks would be cancelled and the amounts would be would be provided to the State Controller's Unclaimed Property Fund.

The settlement contains release language covering any claims "alleged or which could have been alleged based on the factual allegations in the Class Action Complaint, arising during the Class Period, under any federal, state, or local law" and "any and all claims arising from any of the factual allegations in the PAGA Letter and the PAGA Complaint, arising during the PAGA Period, for civil penalties under the Private Attorneys General Act of 2004, California Labor Code Sections 2698 et seq."

Informal discovery was undertaken prior to mediation. The matter settled after extensive arms-length negotiations, which included a mediation session with an experienced mediator.

[1] As the initial notice in this case preceded June 19, 2024, the older distributions of Labor Code section 2699 apply.

Counsel also has provided a summary of a quantitative analysis of the case, and how the settlement compares to the potential value of the case, after allowing for various risks and contingencies.

The LWDA was notified of the settlement.

Since the Court granted preliminary approval, notice was sent to all class members and PAGA employees. No objections have been received. No requests for exclusion have been received. 341 class notices were returned as undeliverable, with efforts resulting in re-mailing of 220 notices. At this time, 121 Class Notices are considered undeliverable after full efforts by Apex.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction . . . to the proposed settlement."

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Pursuant to *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 64, the Court will apply the "fair, reasonable, and adequate" standard of class actions to this PAGA settlement. *Moniz* also requires the Court to assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id*., at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees, costs, and representative payment

Plaintiffs seek thirty-five percent of the total settlement amount as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id*., at 505.)

Counsel have provided an estimate of their lodestar fee. They estimate that they have expended 538 hours to date, all at rates from $1,295 to $750 per hour. This results in a lodestar of $498,321, yielding an implied multiplier of 1.53. All counsel are experienced, and the rates may be justified, but it does appear that at least some of the work could have been done by less experienced counsel who bill at a lower rate. Thus, the lodestar calculation is somewhat higher than ordinarily would be justified.

The Court agrees that the lodestar cross check "does not override the trial court's primary determination of the fee as a percentage of the common fund and thus does not impose an absolute maximum or minimum on the potential fee award." (*Lafitte, supra*, 1 Cal.5th at 505.) But the Court has a fiduciary duty to the class, and in some cases that duty requires that the fee be reduced.

A number of issues must be considered here. First, the fees were contingent on prevailing, and accordingly, some adjustment for the risk of loss is appropriate. As to preclusion of other employment, there may be some preclusion, but a total of about 538 hours, spread over two years, suggests that it was not substantial. Another consideration is the result obtained. It is certainly sufficient to warrant approval, but is not extraordinary. The issue is whether there is anything about this case that justifies a higher than usual fee. The case did not involve exceptional risk—this type of case nearly always settles. It is complex, but not especially novel, since the claims made here are common. Counsel try to flip the usual risk analysis, arguing that early resolution merits a higher multiplier. The Court does not understand this argument. Counsel will be well-compensated for their work, and the possibility that an attorney's fee could be reduced somewhat smaller multiplier in a given case would not discourage counsel from taking this type of case.

The Court awards fees of $675,000 (which is 30% of the size of the fund), and which still constitutes an implied multiplier of 1.35. The difference shall be awarded to the class.

The litigation costs are reasonable and are approved.

As to the requested representative payment of $10,000, Ms. Geneve attests that he participated in the litigation, took the risk of liability for costs, and that her participation could hurt her chances of being hired by other employers. She estimates her time spent at 45-50 hours. She also provided a general release, although she does not indicate that she had any other claims with value. Based on the criteria for evaluation of such requests set forth in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807 (particularly the size of the award relative to the recovery), the request is approved.

D. Discussion and Conclusion

The moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval.

The motion is granted, with the change in attorney's fees as indicated. Counsel are directed to prepare an order reflecting this tentative ruling, and the other findings in the previously submitted proposed order and a separate judgment. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented, the date for which should be obtained through consultation with the Department clerk. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

8. 9:00 AM CASE NUMBER: C23-02746
CASE NAME: RALPH REYES VS. NISSAN NORTH AMERICA, INC.
***HEARING ON MOTION IN RE: ATTORNEYS' FEES AND COSTS**
FILED BY: REYES, RALPH LOUIE
****TENTATIVE RULING:****

Plaintiff Ralph Reyes sued Defendant Nissan North America, Inc. under the Song-Beverly Act. After almost two years of litigation, the case resolved, with the Defendant agreeing to designate Plaintiff as the prevailing party and to pay the Plaintiff attorneys' fees and costs. Plaintiff now seeks a judicial award of attorneys' fees as costs, after the parties were unable to agree on an amount. The Court received no timely opposition.

Plaintiff has submitted a declaration outlining the work performed and the qualifications of the individuals performing the work, billing statements identified the hours expended, receipts or notations of costs expended, and several prior cases justifying the attorney fee rates requested. Plaintiff seeks his lodestar with a 0.2% multiplier.

The lodestar is $41,318.50, which comes to $49,582.20 after the multiplier. Plaintiff also seek $6,283.30 costs. (There appears to be a mistake in the motion, at one point stating the amount as $5,111.12. The Court believes the amount sought is the former.) The total amount requested is therefore $55,865.50.

California Civil Code § 1717(a) authorizes a "prevailing party" to recover an award of reasonable attorney's fees in "any action on a contract" where the contract specifically provides for recovery of attorney's fees. (Cal. Civ. Code § 1717.)

Further, Section 1032(b) states that "a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Cal. Code Civ. Proc. § 1032(b).) California Code of Civil Procedure section 1033.5(a)(10) defines "costs" as attorney's fees when authorized by contract or statute. (Cal. Code Civ. Proc. § 1033.5(a)(10.)

Reasonable attorney's fees in cases, like this one, are generally determined by the "lodestar method." The calculation of hourly rates times the hours expended on the litigation is referred to as the "lodestar" amount, which may be enhanced under certain circumstances. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The Court has reviewed the rates, hours, multiplier, and costs and finds all to be reasonable. Plaintiffs' motion is therefore **granted.**

9. 9:00 AM CASE NUMBER: C23-02936
CASE NAME: SOLARENEWAL LLC VS. PRISTINE SUN FUND 5 LLC
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: RADIAN GENERATION LLC
****TENTATIVE RULING:****